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Case Number: 25STCV11155 Hearing Date: June 25, 2026 Dept: 224

6222 Wilshire Associates. L.P.A., v. Lira Hospice, Inc.

FINAL RULING

The Motion for Summary Judgment is GRANTED. The Motion for Summary Adjudication of the fourth, eighth, twelfth, and sixteenth causes of action is GRANTED. A several judgment shall be entered against Guarantor Defendants David Wittenberg and Chanah Wittenberg, jointly and severally, in the amount of $2,356,449.35, pursuant to Code of Civil Procedure section 579. The action shall proceed against the remaining Defendants.

Introduction

On April 16, 2025, Plaintiff filed the Complaint in this action.

On November 25, 2025, Defendants Lira Hospice, Inc., Choice Health Group, and Omni Home Health, Inc. each filed Chapter 7 bankruptcy petitions.

On December 15, 2025, a Notice of Stay as to the Entity Defendants was filed.

On March 25, 2026, Plaintiff 6222 Wilshire Associates, L.P. filed the instant Motion for Summary Judgment, or in the Alternative, Summary Adjudication, against Guarantor Defendants David Wittenberg and Chanah Wittenberg.

On June 12, 2026, Plaintiff filed a Notice of Non-Opposition to the Motion.

Motion for Summary Judgment

Plaintiff moves for summary judgment against Guarantor Defendants in the amount of $2,356,449.35.

Alternatively, Plaintiff moves for summary adjudication of the following issues:

Issue No. 1. Plaintiff is entitled to summary adjudication of the fourth cause of action for breach of a written guaranty (Suite 225) in the amount of $291,824.32.

Issue No. 2. Plaintiff is entitled to summary adjudication of the eighth cause of action for breach of a written guaranty (Suite 240) in the amount of $519,410.69.

Issue No. 3. Plaintiff is entitled to summary adjudication of the twelfth cause of action for breach of a written guaranty (Suite 260) in the amount of $736,431.66.

Issue No. 4. Plaintiff is entitled to summary adjudication of the sixteenth cause of action for breach of a written guaranty (Suite 515) in the amount of $808,782.68.

The motion is unopposed.

Legal Standard

The function of a motion for summary judgment or adjudication is to allow a determination as to whether an opposing party cannot show evidentiary support for a pleading or claim and to enable an order of summary dismissal without the need for trial.¿(Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843). In analyzing such motions, courts must apply a three-step analysis: "(1) identify the issues framed by the pleadings; (2) determine whether the moving party has negated the opponent's claims; and (3) determine whether the opposition has demonstrated the existence of a triable, material factual issue." (Hinesley v. Oakshade Town Center (2005) 135 Cal.App.4th 289, 294).¿ Thus, summary judgment or summary adjudication is granted when, after the Court's consideration of the evidence set forth in the papers and all reasonable inferences accordingly, no triable issues of fact exist and the moving party is entitled to judgment as a matter of law.¿(CCP § 437c(c);¿Villa v.¿McFarren¿(1995) 35 Cal.App.4th 733, 741).¿

As to each claim as framed by the complaint, the party¿moving for summary judgment or summary adjudication must satisfy the initial burden of proof by presenting facts to negate an essential element.¿(Scalf¿v. D. B. Log Homes, Inc.¿(2005) 128 Cal.App.4th 1510, 1520). Courts "liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party."¿(Dore v. Arnold Worldwide, Inc.¿(2006) 39 Cal.4th 384, 389). A motion for summary judgment or summary adjudication must be denied where the moving party's evidence does not prove all material facts, even in the absence of any opposition or where the opposition is weak.¿(See¿Leyva v. Superior Court¿(1985) 164 Cal.App.3d 462, 475;¿Salesguevara¿v. Wyeth Labs., Inc. (1990) 222 Cal.App.3d 379, 384, 387.)¿¿¿

A moving plaintiff meets his or her burden of showing that there is no defense to a cause of action "if that party has proved each element of the cause of action entitling the party to judgment on the cause of action. Once the plaintiff or cross-complainant has met that burden, the burden shifts to the defendant or cross-defendant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The defendant or cross-defendant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto." (CCP § 437c(p)(1).)

Summary Judgment

Plaintiff seeks summary judgment against Guarantor Defendants on the entire Complaint. The Court cannot grant summary judgment of the entire Complaint. Summary judgment is proper only where it disposes of the entire action. (CCP § 437c(a), (c).) Here, as of the date of the hearing, the first through third, fifth through seventh, ninth through eleventh, and thirteenth through fifteenth causes of action remain pending against the Entity Defendants and are subject to the bankruptcy stay. The fourth, eighth, twelfth, and sixteenth causes of action against Guarantor Defendants do not dispose of the entire action.

At the hearing on June 25, 2026 Plaintiff made an oral motion to dismiss the thefirst through third, fifth through seventh, ninth through eleventh, and thirteenth through fifteenth causes of action WITHOUT PREJUDICE. The Court granted the oral motion, and ordered the Plaintiff to file dismissals as well.

The motion for summary judgment is therefore GRANTED.

In light of the oral motion, which was granted at the hearing, the Court addresses the motion as one for summary judgment of the fourth, eighth, twelfth, and sixteenth causes of action.

Fourth, Eighth, Twelfth, and Sixteenth Causes of Action: Breach of Written Guaranty

Plaintiff argues that it is entitled to summary judgment of the four guaranty causes of action because there is no triable issue of material fact and no affirmative defense to any of them.

A guaranty is a contract, and its breach is established by the same elements as a breach of contract. The elements of a breach of contract are (1) the existence of a contract, (2) performance or excuse for nonperformance by plaintiff, (3) breach by defendant, and (4) damages. (Oasis West Realty LLC v. Goldman (2011) 51 Cal.4th 811, 821.)

In support of its argument, Plaintiff cites the following evidence.

Plaintiff is the owner and landlord of the Subject Property, including the four Suites. (Nagel Decl. ¶ 5, Exh. 1.) Plaintiff and the tenant Defendants entered into four written lease agreements, each as amended, with terms expiring November 30, 2030. The Suite 225 lease was entered with David and assigned to Lira Hospice, Inc. (Nagel Decl. ¶¶ 9-15, Exhs. 2-7.) The Suite 240 lease was entered with Choice Health Group. (Nagel Decl. ¶¶ 27-30, Exhs. 9, 11.) The Suite 260 lease was entered with Right Choice and My Choice. (Nagel Decl. ¶¶ 42-47, Exhs. 13-17.) The Suite 515 lease was entered with Omni Home Health. (Nagel Decl. Nagel Decl. ¶¶ 59-66, Exhs. 19-25.)

Guarantor Defendants David and Chanah executed written guaranties of each lease agreement, by which they unconditionally guaranteed the obligations of the tenants under the leases. (Nagel Decl. ¶11, Exh. 4 [Suite 225]; ¶ 28, Exh. 10 [Suite 240]; ¶ 44, Exh. 15 [Suite 260]; ¶ 60, Exh. 20 [Suite 515]; ¶ 81.) Plaintiff performed its obligations under the lease agreements by delivering possession of the Suites to the tenant Defendants, who took possession and operated their businesses at the Subject Property. (Nagel Decl. ¶¶19, 34, 51, 70, 86; Almquist Decl. ¶¶ 10, 14, 18, 22.)

Beginning October 1, 2024, the tenant Defendants failed to pay the rent due under the lease agreements and thereby defaulted. (Nagel Decl. ¶¶ 20, 35, 52, 71, 82; Almquist Decl. ¶¶ 11, 15, 19, 23.) Plaintiff served three-day notices to pay rent or quit, and the tenant Defendants failed to pay the amounts stated. (Nagel Decl. ¶ 21, Exh. 8 [Suite 225]; ¶ 36, Exh. 12 [Suite 240]; ¶ 53, Exh. 18 [Suite 260]; ¶ 72, Exh. 26 [Suite 515]; Almquist Decl. ¶ 4 and ¶ 12, Exh. 8; ¶ 16, Exh. 12; ¶ 20, Exh. 18; ¶ 24, Exh. 26.) On or about April 7, 2025, the tenant Defendants vacated the Suites, and Plaintiff has not obtained replacement tenants. (Nagel Decl. ¶¶ 22, 37, 54, 73, 104, Exh. 8; Almquist Decl. ¶¶ 13, 17, 21, 25.)

Plaintiff retained Jones Lang LaSalle Brokerage, Inc. to market the Suites for re-letting, and no replacement tenants have been secured. (Nagel Decl. ¶¶ 103-104, Exh. 33; Silver Decl. ¶¶ 6-8, Exh. 33.) As a result of the breaches, and after application of the discount rate of the Federal Reserve Bank of San Francisco to future rent, which as of December 11, 2025, was 3.75% (Nagel Decl. ¶¶87-88, Exh. 32; Rosenbaum Decl. ¶2, Exh. 32), Guarantor Defendants, jointly and severally, owe Plaintiff $291,824.32 as to Suite 225 (Nagel Decl. ¶¶88-91, Exhs. 27, 28), $519,410.69 as to Suite 240 (Nagel Decl. ¶¶ 88, 92-94, Exhs. 27, 29), $736,431.66 as to Suite 260 (Nagel Decl. ¶¶ 88, 95-97, Exhs. 27, 30), and $808,782.68 as to Suite 515 (Nagel Decl. ¶¶88, 98-100, Exhs. 27, 31), totaling $2,356,449.35.

Plaintiff has met its initial burden on summary judgment.

First, the existence of the written guaranties is established. The guaranties identify the guarantors, the obligations guaranteed, and the underlying lease agreements with sufficient certainty to constitute agreements.

Second, Plaintiff has established its performance. The evidence shows Plaintiff delivered possession of the Suites to the tenant Defendants and otherwise performed its obligations under the lease agreements.

Third, Plaintiff has shown breach. The tenant Defendants failed to pay rent beginning October 1, 2024, defaulted under the lease agreements, and vacated the Suites prior to expiration of the terms. The guaranties obligated Guarantor Defendants to satisfy the tenants' obligations. No evidence has been presented showing that these sums were paid, forgiven, or otherwise excused.

Fourth, Plaintiff has established damages. The evidence shows damages of $291,824.32 as to Suite 225, $519,410.69 as to Suite 240, $736,431.66 as to Suite 260, and $808,782.68 as to Suite 515, totaling $2,356,449.35.

The burden shifts to Guarantor Defendants to raise a triable issue of material fact as to any element or to a legally cognizable defense. (CCP § 437c(p)(1).)

Guarantor Defendants filed no opposition. They have not set forth specific facts showing any triable issue of material fact. Guarantor Defendants have not met their burden. (Tire Distributors, Inc. v. Cobrae, 132 Cal.App.4th 538 (2005)) [when unopposed summary judgment motion establishes the absence of triable issues of fact, the trial court has discretion to grant the motion under Cal. Civ. Proc. Code § 437c, subd. (b)(3).])

Based on the foregoing, summary judgment of the fourth, eighth, twelfth, and sixteenth causes of action is GRANTED.

Attorney’s Fees

Plaintiff's request for attorney's fees shall be submitted by separate noticed motion. Where a contract provides for attorney's fees, those fees are an element of the costs of suit, and the prevailing party is entitled to have them fixed by the court. (Civ. Code, § 1717, subd. (a).) Such fees, when authorized by contract, must be fixed upon a noticed motion or upon entry of default judgment, unless the parties stipulate otherwise. (Code Civ. Proc., § 1033.5, subd. (c)(5); Cal. Rules of Court, rule 3.1702.) A separate noticed motion is therefore the required vehicle for claiming contractual attorney's fees. (Russell v. Trans Pacific Group (1993) 19 Cal.App.4th 1717, 1722-1723; Santisas v. Goodin (1998) 17 Cal.4th 599, 618-619.)

Conclusion

The Motion for Summary Judgment is GRANTED of the fourth, eighth, twelfth, and sixteenth causes of action is GRANTED. The judgment is entered against Guarantor Defendants David Wittenberg and Chanah Wittenberg, jointly and severally, in the amount of $2,356,449.35.

Moving party to give notice.